

Railway Ministry's decision. ---3. While no subscription should be collected from class III and class IV staff when any entertainment is held in honour of a Class II or Class I Officer it is not the intention of the rule that when an entertainment is held in honour of Class III/Class IV staff, a class I or class II Officer should not attend the function as a guest by invitation or on a contributory basis.

(E (D&A) 60 GSI-8 dt. 4-11-67.)

15. Private trade or Employment.---(1) Subject to the provisions of sub-rule (2) no Railway Servant shall, except with the previous sanction of the Government---

- (a) engage directly or indirectly in any trade or business, or
- (b) negotiate for, or undertake, any other employment, or
- (c) hold an elective office, or canvass office for a candidate or candidates for an elective office, in any body, whether incorporated or not, or
- (d) Canvass in support of any business of insurance agency, commission agency, etc. owned or managed by any member of his family or
- (e) take part except in the discharge of his official duties, in the registration, promotion or management of any bank or other company registered or required to be registered, under the Companies Act, 1956 (1 of 1956) or any other law for the time being in force, or of any co-operative society for commercial purposes.
- (f) participate in or associate himself in any manner in the making of-
 - i. a sponsored media (radio or television) programme; or
 - ii. a media programme commissioned by Government media but produced by a private agency; or
 - iii. a privately produced media programme including video magazine;

Provided that no previous permission shall be necessary in case where the Railway Servant participates in a programme produced or commissioned by Government media in his official capacity.

(Authority: Railway Board's Letter No. E(D & A) 96GS1-8 dated 7-1-97)

(2) A railway servant may, without the previous sanction of the Government—

- (a) undertake honorary work of a social or charitable nature, or
- (b) undertake occasional work of a literary, artistic or scientific character, or
- (c) participate in sports activities as an amateur, or

- (d) take part in the registration, promotion or management (not involving the holding of an elective office) of a literary, scientific or charitable society or of a club or similar organisation the aims or objects of which relate to promotion of sports, cultural or recreational activities, registered under the Societies Registration Act, 1860 (21 of 1860), or any other law for the time being in force, or,
- (e) take part in the registration, promotion or management (not involving the holding of an elective office) of a co-operative society substantially for the benefit of railway servants, registered under the Co-operative Societies Act, 1912 (2 of 1912) or any other law for the time being in force.

Provided that:---

- i. he shall discontinue taking part in such activities, if so directed by the Government ; and
- ii. in a case falling under clause (d) or clause (e) of this sub-rule, his official duties shall not suffer thereby and he shall, within a period of one month of his taking part in such activity, report to the Government giving details of the nature of his participation.

(3) Every railway servant shall report to the Government if any member of his family is engaged in a trade or business or owns or manages an insurance agency or commission agency.

(4) Unless otherwise provided by general or special orders of the Government, no Railway servant may accept any fee for any work done by him for any private or public body or any private person without the sanction of the prescribed authority.

Explanation. –The term ‘fee’ used here shall have the meaning assigned to it in Rule 103(18)-R.I.

Railway Ministry’s decision. —(1) It is not permissible for a Railway servant to take an Insurance Agency in his own name and canvass for the same.

(E (D&A) 58 GSI-40 dt. 7-3-58.)

Railway Ministry’s decision. – (2) Railway servants should not ordinarily be allowed to accept part time employment whether under Government or elsewhere, even though such employment is after office hours.

(9E(D&A) 58 GSI-29 dt. 16-1-59.)

Railway’s Ministry’s decision.---(3) Railway servants, holding recognized qualification for any system of medicine may be granted permission by the Heads of Departments to undertake medical practice during spare time, on a purely charitable basis without detriment to his official duties. This will not apply to those who possess the qualification and are employed as physicians, surgeons etc., on the Railways.

(E (D&A) 64 GSI-5 dt. 30-5-64 and 10-11-65.)

Railway’s Ministry’s decision.---(4) No railway servant should negotiate for commercial employment during service without obtaining the prior permission of

the Head of the Department and such permission should not be given unless there are any special reasons for doing so.

(E(G) 6 EM 1-2 dt. 26-3-66.)

15-A. Sub-letting and vacation of Government accommodation.

(1) Save as otherwise provided in any other law for the time being in force, no Railway servant shall sub-let, lease or otherwise allow occupation by any other person of government accommodation which has been allotted to him.

(2) A Railway servant shall, after the cancellation of his allotment of Government accommodation vacate the same within the time-limit prescribed by the allotting authority.

(Authority: Railway Board's letter No. E (D&A) 96 GS1-8 dt. 17.01.1997.)

16. Investment, lending and borrowing. —(1) No Railway Servant shall speculate in any stock, share or other investment:

Provided that nothing in this sub0rul shall apply to occasional investments made through stock brokers or other persons duly authorized and licensed or who have obtained a certificate of registration under the relevant law.

Explanation – Frequent purchase or sale or both, of shares, securities or other investments shall be deemed to be speculation within the meaning of this sub-rule.

(2) (i) No Railway servant shall make, or permit any member of his family or any person acting on his behalf to make, any investment which is likely to embarrass or influence him in the discharge of his official duties. For this purpose, any purchase of shares out of the quotas reserved for Directors of Companies or their friends and associates shall be deemed to be an investment which is likely to embarrass the Railway servant.

(Authority: Railway Board's letter No. E (D&A) 96 GS 1-8 dt. 17.01.1997.)

(2) (ii) No Railway servant who is involved in the decision making process of fixation of price of an Initial Public Offering or Follow-up Public Offering of shares of a Central Public Sector Enterprise shall apply, either himself or through any member of his family or through any other person acting on his behalf, for allotment of shares in the Initial Public Offerings or Follow-up Public Offerings of such Central Public Sector Enterprise".(Authority: Railway Board's letter No.E(D&A) 2009/GS1-4 dated 14-07-09)—**acs no.108**

(3) If any question arises whether any transaction is of the nature referred to in sub-rule (1) or sub-rule (2), the decision of the government thereon shall be final.

(4) (i) No railway servant shall, save in the ordinary course of business with a bank or a public limited company either himself or through any member of his family or any other person acting on his behalf—

(a) Lend or borrow or deposit money, as a principal or an agent, to or from or with, any person or firm or private limited company with whom he is likely to have official dealings or otherwise place himself under pecuniary obligation to such person or firm or private limited company; or

(b) lend money to any person at interest or in a manner whereby return in money or in kind is charged or paid.